



2026:KER:62040

WP (CRL.) NO. 818 OF 2026

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IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE THE CHIEF JUSTICE MR. SOUMEN SEN

&

THE HONOURABLE MR. JUSTICE SYAM KUMAR V.M.

TUESDAY, THE 11TH DAY OF AUGUST 2026 / 20TH SRAVANA, 1948

WP (CRL.) NO. 818 OF 2026

CRIME NO.29/2025 OF EXCISE ENFORCEMENT AND ANTI NARCOTIC SPECIAL SQUAD,

THIRUVANANTHAPURAM, Thiruvananthapuram

PETITIONER:

SUJITHA S
AGED 52 YEARS
W/O.LATE MURALI D., S.R. BHAVAN, KARITHALAKKAL,
MURUKKUMPUZHA P.O., VAILLOOR, THIRUVANANTHAPURAM, PIN -
695302

BY ADVS.
SRI.PIRAPPANCODE V.S.SUDHIR
SMT.MARY KUNJU JOHN

RESPONDENTS:

- 1 STATE OF KERALA
REPRESENTED BY THE CHIEF SECRETARY, SECRETARIAT,
THIRUVANANTHAPURAM, PIN - 695001
- 2 THE ADDITIONAL CHIEF SECRETARY
GOVERNMENT OF KERALA, HOME DEPARTMENT, SECRETARIAT,



WP (CRL.) NO. 818 OF 2026

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THIRUVANANTHAPURAM, PIN - 695001

- 3 THE EXCISE COMMISSIONER
COMMISSIONERATE OF EXCISE, THIRUVANANTHAPURAM, PIN - 695033
- 4 THE JOINT EXCISE COMMISSIONER
SOUTH ZONE, THIRUVANANTHAPURAM, PIN - 695033
- 5 THE ADDITIONAL EXCISE COMMISSIONER
(ENFORCEMENT), THIRUVANANTHAPURAM, PIN - 695033
- 6 THE DEPUTY EXCISE COMMISSIONER
THIRUVANANTHAPURAM, PIN - 695033
- 7 SUPERINTENDENT OF PRISONS,
CENTRAL PRISON, POOJAPPURA P.O., THIRUVANANTHAPURAM, PIN -
695012

O.A. NURIYA-SR.PP

THIS WRIT PETITION (CRIMINAL) HAVING COME UP FOR ADMISSION ON
11.08.2026, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:



**SOUMEN SEN, C.J.
&
SYAM KUMAR V. M., J.**

W.P.(Crl.) No. 818 of 2026

Dated this the 11th day of August, 2026

J U D G M E N T

Soumen Sen, C.J.

1. This Writ Petition is filed by the mother of the detenu, Midhun Murali, challenging Exhibit-P11 detention order dated 9th January, 2026 passed by the Additional Chief Secretary, Home (SSC) Department, Government of Kerala, in exercise of the power conferred under Section 3(1) of the Prevention of Illicit Traffic in Narcotic Drugs and Psychotropic Substances Act, 1988 ('PITNDPS Act', for short). The detention order was executed on 12th January, 2026 and the detenu is presently confined in the Central Prison, Thiruvananthapuram.
2. The process leading to the issuance of the detention order (Exhibit-P11) commenced with the proposal submitted by the



Deputy Excise Commissioner, Thiruvananthapuram, who, in his capacity as the Sponsoring Authority, forwarded the reports dated 29th November, 2025, 20th December, 2025, 27th December, 2025 and 6th January, 2026 to the Government recommending action under Section 3(1) of the PITNDPS Act. The proposal was thereafter scrutinized by the Government and the matter was then placed before the Screening Committee, which considered the proposal on 24th December, 2025. The Screening Committee, however, was of the opinion that the case did not warrant the issuance of a detention order at that stage, particularly since the detenu was then in judicial custody. The sponsoring authority was permitted to re-submit a proposal in the event of the detenu obtaining bail.

3. The detenu was thereafter granted bail for the last prejudicial activity on 3rd January, 2026 in Crime No.29/2025. Subsequently, the sponsoring authority submitted a further report on 6th January, 2026 to the Government recommending initiation of preventive detention proceedings against the detenu



and the report of the screening committee was forwarded to the Government on 7th January, 2026. Thereafter, upon consideration of the materials available on record and the recommendations made by the competent authorities, the Government issued the detention order on 9th January, 2026.

4. The detention order was executed on 12th January, 2026 and the detenu was furnished with the grounds of detention under Section 3(3) of the PITNDPS Act. Thereafter, the matter was referred to the Advisory Board on 19th January, 2026 and the authorised officer submitted the report under Section 3 of the PITNDPS Act on 23rd January, 2026. On 27th January, 2026, the detenu was informed of the receipt of the reference and was requested to submit his representation, if any. He was also informed of the date fixed for the personal hearing. On the same day, the Deputy Excise Commissioner, Thiruvananthapuram City, and the Additional Chief Secretary(ACS), Home Department, were informed of the receipt of the reference and were requested to furnish their submissions/remarks, if any,



and the date of personal hearing. The personal hearing was conducted through Google Meet on 20th February, 2026.

5. A perusal of the detention order reveals that it is founded on two criminal cases involving the detenu, namely Crime No. 05 of 2025 of Excise Range Office, Kazhakkuttam, registered for offences punishable under Sections 22(b) and 20(b)(ii)(A) of the Narcotic Drugs and Psychotropic Substances Act, 1985 ('NDPS Act', for short). In the said crime, the detenu was arrested on 17th February, 2025 and on 27th May, 2025 he was granted bail in CMP Nos.1053/2025 and 1236/2025 by the Additional Sessions Judge-I, Thiruvananthapuram on the following conditions:

"In the result, the petition is allowed and the petitioner/accused is ordered to be released on default bail in the following conditions:

- i) the petitioner- accused shall execute a bond for ₹70,000/- with two solvent sureties each for the like sum;*
- ii) the petitioner shall not directly or indirectly make any inducement, threat, or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or tampering with the evidence;*



iii) the petitioner shall appear before the investigating officer once in every week on Tuesdays between 10 am and 12 noon for a period of four months;

iv) the petitioner shall provide his mobile number to the Investigating Officer concerned, which shall be kept in working condition at all times and he shall not change the mobile number without prior intimation to the IO concerned;

v) the petitioner shall not indulge in similar offence or any offence under NDPS Act.

CMP 1236/2025 stands closed in view of filing of the FSL report.”

6. Later, the prosecution filed a petition for cancellation of bail before the District and Sessions Court, Thiruvananthapuram vide CMP No.1053/2025 on 11th November, 2025. After completion of the investigation, charge sheet of the case was submitted before the District Additional Session Judge-I, Thiruvananthapuram on 31st October, 2025 pursuant to which, the case is presently pending trial before the competent court.

7. The second crime relied upon by the Detaining Authority is Crime No.29 of 2025 of the Excise Enforcement and Anti Narcotic Special Squad, Thiruvananthapuram registered under Sections 22(c) and 8(c) of the NDPS Act. In the said crime, the detenu was



arrested on 3rd October, 2025 and the detenu was remanded to judicial custody on 4th October, 2025. The detenu had filed the bail application before the District and Sessions Court, Thiruvananthapuram and it was dismissed on 31st December, 2025. Later, bail was granted on 3rd January, 2026 in Bail Application No.15/2026 by the Additional Sessions Judge-I, Thiruvananthapuram on the following conditions:

“In the result, the petition is allowed and the petitioner/accused is ordered to be released on bail in the following conditions:

1. the petitioner-accused shall execute a bond for ₹50,000/- with two solvent sureties each for the like sum;

2. the petitioner shall not directly or indirectly make any inducement, threat, or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or tampering with the evidence;

3.the petitioner shall report before the investigating officer once in every month on first Fridays between 10 am and 12 noon for a period of 7 months;

4. the petitioner shall provide his mobile number to the Investigating Officer concerned, which shall be kept in working condition at all times and he shall not change the mobile number without prior

5. the petitioner shall not indulge in similar offence or any offence under NDPS Act.



6. In the event of any violation of these conditions, the Investigating Officer shall be at liberty to file an application for cancellation of bail before this Court or the Trial Court, as the case may be, depending on where the matter is pending at that stage;

7. The petitioner is granted liberty to move before this Court or the Trial Court, as the case may be, depending on where the matter is pending at that stage, for modification of any of the bail conditions in case of changed circumstances.”

8. The Government, by order dated 27th February, 2026 confirmed the order of detention and directed that the detention of the detenu be continued for a period of one year from the date of detention. Aggrieved by Exhibit-P11 detention order and the consequential order of confirmation of the Government, Exhibit-P13, the petitioner has approached this Court.
9. The last prejudicial activity relied upon by the Detaining Authority was on 3rd October, 2025, whereas the impugned detention order came to be passed only on 9th January, 2026. The petitioner, therefore, contended that there was an unexplained delay of 98 days in passing the detention order from the date of the last prejudicial activity. It was further contended that the quantity of methamphetamine involved in Crime No.29/2025 was



only 11.7173 grams and, therefore, fell within the intermediate quantity and not commercial quantity. According to the petitioner, the contrary finding in the detention proceedings demonstrates non-application of mind.

10. The challenge to the impugned detention order, in brief, is eight-fold. Firstly, it was contended that the detention order is vitiated by inordinate and unexplained delay. According to the petitioner, the last alleged prejudicial activity relied upon by the Detaining Authority occurred on 3rd October, 2025, whereas the impugned detention order was passed only on 9th January, 2026. It was submitted that the Detaining Authority has failed to satisfactorily explain the delay of 98 days between the last prejudicial activity and the date of issuance of the impugned detention order and that such unexplained delay has snapped the live and proximate link between the alleged prejudicial activity and the necessity for preventive detention.

11. Secondly, it was contended that the impugned detention order was passed by bypassing the earlier decision of the Screening



Committee. According to the petitioner, the Screening Committee had, on 24th December, 2025, considered the proposal for detention of the detenu and found that the case did not warrant the issuance of an order of detention under Section 3(1) of the PITNDPS Act. Though the Screening Committee had permitted re-submission of a proposal in the event of the detenu obtaining bail, there was no subsequent consideration by the Screening Committee or any fresh recommendation by it after the detenu was enlarged on bail. It was, therefore, submitted that the Detaining Authority proceeded to act upon the subsequent report of the Sponsoring Authority without any fresh scrutiny by the Screening Committee.

12. Thirdly, it was contended that the Detaining Authority failed to independently apply its mind to the materials placed before it and was carried away by the report submitted by the Sponsoring Authority. According to the petitioner, the allegation that the detenu had violated the conditions of bail and had involved himself in another offence is false. It was submitted that there



was no material warranting the subjective satisfaction that the detenu was likely to indulge in illicit trafficking in narcotic drugs or psychotropic substances.

13. Fourthly, it was contended that the very basis on which the detention proceedings were initiated was factually erroneous. According to the petitioner, the quantity of methamphetamine involved in Crime No.29/2025 was only 11.7173 grams and, therefore, constituted intermediate quantity and not commercial quantity. It was submitted that the contrary observation in the detention order demonstrates non-application of mind and materially vitiates the subjective satisfaction of the detaining authority.

14. Fifthly, it was contended that the detention order is cryptic and does not disclose an independent subjective satisfaction of the Detaining Authority. According to the petitioner, the Detaining Authority had merely acted upon the proposals and reports submitted by the sponsoring authorities without recording separate grounds demonstrating the necessity for preventive



detention. It was submitted that the order is, therefore, contrary to the statutory scheme of the PITNDPS Act and the requirement of independent application of mind.

15. Sixthly, it was contended that the detenu was not informed of his right to submit a representation before the Detaining Authority itself. According to the petitioner, though the detention order informed the detenu of his right to submit a representation to the State Government, the PITNDPS Advisory Board and the Government of India, it did not inform him of his independent right to make a representation before the authority which had passed the order of detention. It is submitted that such omission violates the constitutional safeguard guaranteed under Article 22(5) of the Constitution of India.

16. Seventhly, it was contended that the representation submitted on behalf of the detenu was not independently and effectively considered by the Government. According to the petitioner, the representation specifically raised the delay in passing the detention order, the false implication of the detenu in the criminal



cases, the erroneous classification of the contraband as commercial quantity and the other infirmities in the detention proceedings. However, the order confirming the detention merely stated that the report, the opinion of the Advisory Board and the representation had been examined with full application of mind, without dealing with the specific contentions raised in the representation. It was, therefore, submitted that there was no effective consideration of the representation.

17. Lastly, it was contended that the detention proceedings were initiated with the *mala fide* intention of defeating the bail granted to the detenu. According to the petitioner, the detenu was granted bail by default upon failure of the investigating agency to file the report or charge-sheet within the prescribed period and the subsequent initiation of preventive detention proceedings was intended to frustrate the benefit of the bail order. It was further contended that the detention order did not specify the period of detention, resulting in uncertainty and furnishing an additional ground to invalidate the detention proceedings.



18. On these grounds, it is contended that Exhibit-P11 detention order and the confirmation order by the Government are vitiated by delay, non-application of mind, violation of the statutory and constitutional safeguards and *mala fides*, and are, therefore, liable to be set aside.

19. *Per contra*, the learned Senior Public Prosecutor submitted that the challenge to the impugned detention order is devoid of merit. It was contended that the detention order dated 9th January, 2026 was passed by the competent authority under Section 3(1) of the PITNDPS Act after considering the proposals submitted by the Sponsoring Authority on 29th November, 2025, 20th December, 2025, 27th December, 2025 and 6th January, 2026 as well as the proposal forwarded by the Excise Commissioner on 18th December, 2025. The Government had examined the materials and placed the proposal before the Screening Committee, which considered the matter on 24th December, 2025.

20. It was submitted that the Screening Committee, at that stage, did not recommend the issuance of a detention order since the



detenu was in judicial custody and the Screening Committee was of the view that the last prejudicial activity involved commercial quantity and that the rigour of Section 37 of the NDPS Act would apply to the question of bail. The Screening Committee, however, directed that a fresh proposal could be submitted in the event of the detenu obtaining bail. The learned Government Pleader submitted that, after the detenu was granted bail on 3rd January, 2026 the Sponsoring Authority informed the Government of the same and requested reconsideration of the proposal. The Government thereafter considered the proposal along with the opinion of the Screening Committee and passed the detention order on 9th January, 2026.

21. The learned Senior Public Prosecutor further submitted that there was no unexplained delay in passing or executing the impugned detention order. According to the respondents, the detenu remained in judicial custody until 3rd January, 2026 and the detention order was passed within six days thereafter, i.e., on 9th January, 2026. The detention order was executed on 12th



January, 2026. It was, therefore, contended that the live and proximate link between the last prejudicial activity and the necessity for preventive detention had not been snapped.

22. It was further submitted that the detention order was passed after due consideration of the criminal antecedents and the prejudicial activities of the detenu. The detenu was involved in Crime No.29/2025 of the Excise Enforcement and Anti-Narcotic Special Squad, Thiruvananthapuram, in which 11.7173 grams of MDMA was seized from his possession on 3rd October, 2025. The chemical analysis subsequently revealed that the substance was methamphetamine. The detenu was granted bail in the said case on 3rd January, 2026 subject to conditions.

23. The learned Senior Public Prosecutor submitted that the detenu had earlier been involved in Crime No.05/2025 of the Excise Range Office, Kazhakuttam, in which 32 grams of methamphetamine and 20 grams of ganja were allegedly seized from his possession. Though the detenu had been released on bail in the said case subject to the condition that he should not



indulge in similar offences or any offence under the NDPS Act, he was subsequently involved in Crime No.29/2025. According to the detaining authority, the subsequent involvement of the detenu in a similar offence demonstrated that the bail conditions had not been sufficient to prevent him from indulging in prejudicial activities.

24. It was also submitted that the detenu had been involved in other cases under the NDPS Act, including cases relating to consumption of ganja, and was also involved in a case registered under the Kerala Anti-Social Activities (Prevention) Act, 2007. According to the respondents, the criminal antecedents of the detenu, read with his subsequent involvement in another NDPS case while on bail, furnished sufficient material for the Detaining Authority to arrive at the subjective satisfaction that preventive detention was necessary to prevent him from indulging in illicit traffic in narcotic drugs and psychotropic substances.

25. The learned Senior Public Prosecutor further contended that the fact that the substance seized in the last prejudicial activity was



initially described as MDMA and was subsequently identified by chemical analysis as methamphetamine did not vitiate the detention proceedings. It was submitted that the Government had considered the proposal and the materials placed before it, including the opinion of the Screening Committee, and had independently arrived at the requisite subjective satisfaction before passing the detention order.

26. It was further submitted that all the procedural safeguards prescribed under the PITNDPS Act had been duly complied with. The detention order was communicated to the Ministry of Finance, Government of India, as required under Section 3(2) of the PITNDPS Act. The case of the detenu was referred to the PITNDPS Advisory Board under Section 9(b) of the PITNDPS Act. The Advisory Board heard the detenu and the Sponsoring Authority on 20th February, 2026 and after considering the relevant materials, opined on 24th February, 2026 that there were sufficient grounds for the continued detention of the detenu. The Government thereafter confirmed the detention under Section 9(f)



of the PITNDPS Act and directed continuation of the detention for a period of one year from the date of detention under Section 11 of the PITNDPS Act.

27. With regard to the representation dated 3rd February, 2026 the learned Public Prosecutor submitted that the same was duly considered by the Government. Having regard to the criminal cases involving the detenu and the opinion of the Advisory Board, the contentions raised in the representation were found to be devoid of merit. The representation was accordingly rejected and a reply was furnished to the detenu and the petitioner on 2nd March, 2026.

28. It was finally submitted that the detention order was passed in exercise of the statutory power conferred under Section 3(1) of the PITNDPS Act, with the object of preventing the detenu from indulging in illicit traffic in narcotic drugs and psychotropic substances. The learned Senior Public Prosecutor submitted that the Detaining Authority had arrived at the requisite subjective satisfaction on the basis of relevant materials and that no



constitutional safeguard available to the detenu had been violated. The detention order and the consequential order of confirmation were, therefore, sought to be sustained.

29. We heard the learned counsel for the petitioner and the learned Senior Public Prosecutor.

30. We shall first deal with the contention regarding the alleged delay in passing the order of detention. According to the petitioner, there was inordinate delay between the last prejudicial activity attributed to the detenu and the issuance of the detention order. It was contended that such delay has the effect of snapping the live and proximate link between the prejudicial activities relied upon and the subjective satisfaction arrived at by the detaining authority.

31. At the outset, it is to be noticed that the PITNDPS Act does not prescribe any specific period within which an order of detention is required to be passed from the date of the prejudicial activity. What is required is that the Detaining Authority must arrive at its



subjective satisfaction on the basis of the relevant materials that preventive detention is necessary with a view to prevent the person concerned from engaging in illicit trafficking in narcotic drugs and psychotropic substances. Nevertheless, it is well settled that the prejudicial activities relied upon must bear a live and proximate nexus with the order of detention. If there is undue and unexplained delay in passing the detention order, such delay may, in a given case, have the effect of snapping the nexus between the prejudicial activities and the purpose sought to be achieved by the detention. At the same time, where the delay is satisfactorily explained by the time consumed in investigation, collection of materials, administrative processing, scrutiny by the sponsoring and screening authorities and consideration by the Government, the detention order cannot be invalidated merely on the ground of lapse of time.

32. To ascertain whether the live and proximate link gets snapped, it is pertinent to refer to the decision of the Hon'ble Supreme Court



in *T.A Abdul Rahman v. State of Kerala*¹ wherein the Apex Court has reiterated an observation in *Golam Hussain v. Commissioner of Police, Calcutta*² as follows:-

“10. The conspectus of the above decisions can be summarised thus: The question whether the prejudicial activities of a person necessitating to pass an order of detention is proximate to the time when the order is made or the live-link between the prejudicial activities and the purpose of detention is snapped depends on the facts and circumstances of each case. No hard and fast rule can be precisely formulated that would be applicable under all circumstances and no exhaustive guidelines can be laid down in that behalf. It follows that the test of proximity is not a rigid or mechanical test by merely counting number of months between the offending acts and the order of detention. However, when there is undue and long delay between the prejudicial activities and the passing of detention order, the court has to scrutinise whether the detaining authority has satisfactorily examined such a delay and afforded a tenable and reasonable explanation as to why such a delay has occasioned, when called upon to answer and further the court has to investigate whether the causal connection has been broken in the circumstances of each case.”

(emphasis supplied)

33. In *Bhawarlal Ganeshmalji v. State of Tamil Nadu*³, the Hon’ble Supreme Court explained the phrase “live and proximate link” in the following words:

¹ (1989) 4 SCC 741

² (1974) 4 SCC 530

³ (2014) 11 SCC 326



“It is further true that there must be a “live and proximate link” between the grounds of detention alleged by the detaining authority and the avowed purpose of detention, namely the prevention of smuggling activities. We may in appropriate cases assume that the link is “snapped” if there is a long and unexplained delay between the date of the order of detention and the arrest of the detenu. In such a case, we may strike down an order of detention unless the grounds indicate a fresh application of the mind of the detaining authority to the new situation and the changed circumstances. But where the delay is not only adequately explained but is found to be the result of the recalcitrant or refractory conduct of the detenu in evading arrest, there is warrant to consider the “link” not snapped but strengthened.”

(emphasis supplied)

34. As regards the contention relating to the question of delay, it is relevant to refer to the decision of the Hon’ble Supreme Court in the case of ***Licil Antony v. State of Kerala***⁴, wherein it was observed as follows:

“9. While dealing with the question of delay in making an order of detention, the court is required to be circumspect and has to take a pragmatic view. No hard-and-fast formula is possible to be laid or has been laid in this regard. However, one thing is clear that in case of delay, that has to be satisfactorily explained. After all, the purpose of preventive detention is to take immediate



steps for preventing the detenu from indulging in prejudicial activity. If there is undue and long delay between the prejudicial activity and making of the order of detention and the delay has not been explained, the order of detention becomes vulnerable. Delay in issuing the order of detention, if not satisfactorily explained, itself is a ground to quash the order of detention. No rule with precision has been formulated in this regard. The test of proximity is not a rigid or a mechanical test. In case of undue and long delay the court has to investigate whether the link has been broken in the circumstances of each case."

(emphasis supplied)

35. We have carefully perused the records produced before us. It is evident from the materials on record that the last prejudicial activity relied upon by the Detaining Authority is Crime No.29/2025 was registered on 3rd October, 2025. The detenu was arrested on the same day and remained in judicial custody till he was enlarged on bail on 3rd January, 2026. During the period of judicial custody, the Sponsoring Authority submitted a proposal dated 29th November, 2025 recommending preventive detention under the PITNDPS Act. A further proposal was submitted on 20th December, 2025 by the Sponsoring Authority recommending preventive detention under PITNDPS Act. The Screening



Committee had considered the proposal on 24th December, 2025 and permitted re-submission in the event of the detenu obtaining bail. After the detenu was enlarged on bail, the Sponsoring Authority submitted a further proposal on 6th January, 2026 which was thereafter considered by the Detaining Authority, leading to the passing of the impugned detention order on 9th January, 2026.

36. The impugned detention order dated 9th January, 2026 came to be passed 98 days after the last alleged prejudicial activity dated 3rd October, 2025 in Crime No.29/2025. Though the detenu was enlarged on bail on 3rd January, 2026, the Sponsoring Authority submitted a fresh proposal on 6th January, 2026, and the detention order was passed on 9th January, 2026. Thus, the detention order was issued within three days of the fresh proposal. The delay of 98 days between the last prejudicial activity and the detention order cannot be viewed in isolation, since, during the intervening period, the detenu was in judicial custody and the Screening Committee, which considered the



proposal, did not recommend the issuance of a detention order at that stage but permitted re-submission of the proposal in the event of the detenu obtaining bail in Crime No.29/2025. Upon the detenu being enlarged on bail on 3rd January, 2026, the Sponsoring Authority promptly submitted a fresh proposal on 6th January, 2026. The detention order was thereafter passed on 9th January, 2026. In the facts and circumstances of the case, we find that the delay has been satisfactorily explained.

37. In the impugned detention order, the delay caused is satisfactorily explained as follows:



“6. Sponsoring Authority informed that slight delay occurred in submitting proposal was due to the time taken in the process of collecting documents from the relevant authorities who had registered cases against the respondent. The last prejudicial activity was registered on 03.10.2025. The respondent was apprehended on the same day and remanded to judicial custody. As the respondent was in judicial custody, there was no need for preventive detention at that time. Later, he filed a bail application before the Hon'ble District and Sessions Court, Thiruvananthapuram on 06.12.2025 and but the same was rejected on 31.12.2025 by the Hon'ble District and Sessions Court, Thiruvananthapuram. The Sponsoring authority initiated the proposal for preventive detention u/s 3(1) of PITNDPS Act, 1988 as per letter dated 29.11.2025. The proposal was subsequently recommended and furnished to the Excise Commissioner through the Joint Commissioner of Excise, South Zone, Thiruvananthapuram; and the Additional Excise Commissioner (Enforcement), Thiruvananthapuram. The Excise Commissioner as per letter dated 18.12.2025 recommended and forwarded the proposal to Government.

7. Government have constituted Screening Committee constituted in this regard under the chairmanship of Law Secretary on 24.12.2025. The Screening Committee examined the same in detail and opined that the last case is a commercial quantity case and there is a rigor under section 37 of NDPS act is applicable in granting bail. Therefore, the Screening Committee concluded that both subjectively and objectively, this case does not warrant the issuance of a detention order under Section 3(1) of PITNDPS Act, 1988 and did not recommend the proposal. The Screening Committee also directed the Sponsoring Authority to resubmit necessary proposal, in the event of proposer detenu getting bail from the Hon'ble Court. The report of the screening committee is enclosed with this order. Later the report of the Screening Committee Report



was sent to the Screening Committee members and Sponsoring authority concerned for getting their authentication and same received back to Government on 07.01.2026.

Later, the Sponsoring Authority as per letter dated 06.01.2026 informed Government that the respondent has been granted bail in Crime no.29/2025 of Excise Enforcement and Anti Narcotics Special Squad, Thiruvananthapuram, as per order dated 03.01.2026 and hence requested to reconsider the proposal against the respondent u/s 3(1) of PITNDPS Act. The Detaining Authority further scrutinized the proposal and arrived at objective and subjective satisfaction in issuing the order Exhibit P11 of detention."

38. Thus, from the above discussion, it is evident that the delay in passing the impugned detention order has been satisfactorily explained by the respondents. The explanation offered by the Detaining Authority is both factually and legally acceptable. The delay, viewed in the backdrop of the detenu's continued judicial custody, the consideration of the proposal by the Screening Committee and the subsequent re- submission of the proposal immediately after the detenu was enlarged on bail, cannot be said to be unexplained or unreasonable. We are, therefore, of the view that the delay has not snapped the live and proximate link



between the last prejudicial activity and the necessity for preventive detention.

39. The next contention relates to the decision of the Screening Committee dated 24th December, 2025. According to the petitioner, though the Screening Committee had found that the case did not warrant preventive detention, the subsequent proposal submitted on 6th January, 2026 after the detenu was enlarged on bail was not placed before the Screening Committee for fresh consideration. *Per contra*, the respondents contended that the Committee had specifically permitted re-submission of the proposal in the event of the detenu obtaining bail. We find that the subsequent proposal dated 6th January, 2026 was submitted after the very contingency contemplated by the Screening Committee had occurred. Therefore, the contention that the earlier decision of the Screening Committee was bypassed cannot be accepted.

40. The third issue for consideration before us relates to the alleged non-application of mind by the Detaining Authority. According to



the petitioner, the Detaining Authority merely acted upon the reports and proposals submitted by the Sponsoring Authority without independently considering the materials or recording a proper subjective satisfaction as to the necessity for preventive detention. It is further contended that the quantity of methamphetamine involved in Crime No.29/2025 was only 11.7173 grams, which was an intermediate quantity and not a commercial quantity, and that the contrary observation in the detention order demonstrated non-application of mind. The petitioner also disputed the allegation that the detenu had violated the conditions of bail or had involved himself in another offence.

41. *Per contra*, the respondents submitted that the impugned order of detention was passed after consideration of the entire materials placed before the Detaining Authority, including the criminal antecedents of the detenu, the circumstances of the subsequent offence and the reports submitted by the Sponsoring Authority.

42. We have considered the rival submissions.



43. The mere fact that the Detaining Authority has relied upon the materials and reports submitted by the Sponsoring Authority cannot, by itself, lead to the conclusion that there was no independent application of mind. On a perusal of the detention order and the materials relied upon therein, we find that the Detaining Authority had considered the relevant circumstances and arrived at the requisite subjective satisfaction regarding the necessity for preventive detention. The contention that the Detaining Authority had mechanically acted upon the report of the Sponsoring Authority, therefore, cannot be accepted.
44. The fourth issue for consideration before us relates to the alleged failure to inform the detenu of his right to make a representation to the Detaining Authority. According to the petitioner, though the detention order informed the detenu of his right to submit representations to the State Government, the PITNDPS Advisory Board and the Government of India, it did not specifically inform him of an independent right to make a representation to the Detaining Authority.



45. On a perusal of the detention order, it is evident that the detenu had acknowledged receipt of the relevant documents and that the contents thereof had been explained to him in Malayalam. The acknowledgement bears his signature. The PITNDPS Act does not confer any separate statutory right to make a representation to the Detaining Authority. The detenu had, in fact, availed himself of the opportunity to make a representation against the detention order and the representation, Exhibit-P12, dated 3rd February, 2026 submitted on his behalf was duly considered by the Government.

46. The fifth issue for consideration relates to the alleged non-consideration of the representation submitted on behalf of the detenu. According to the petitioner, in the representation dated 3rd February, 2026 various grounds have been raised, including delay in passing the detention order, false implication and erroneous classification of the quantity of contraband, but they were not effectively considered. *Per contra*, the respondents submitted that the representation was duly considered by the



Government and rejected, having regard to the criminal antecedents of the detenu and the observations of the Advisory Board, and the decision was communicated to the detenu and the petitioner on 2nd March, 2026. The mere fact that each contention raised in the representation was not separately dealt with does not establish non-consideration of the representation. We, therefore, find no merit in this contention.

47. Lastly, the issue for consideration before us is that the detention order did not specify the period of detention. It is not in dispute that the impugned detention order did not specify the period of detention. However, under Section 9(f) of the PITNDPS Act, where the Advisory Board reports sufficient cause for detention, the appropriate Government may confirm the detention order and continue the detention for such period as it thinks fit. In the present case, after considering the report of the Advisory Board, the Government confirmed the detention under Section 9(f) and ordered that the detention be continued for a period of one year from the date of detention, as contemplated under Section 11 of



the PITNDPS Act. Therefore, the mere fact that the period was not specified in the original detention order does not, by itself, vitiate the detention.

48. In view of the aforesaid discussion, we find no merit in the challenge raised against the detention order and the confirmation order of the Government. Exhibit-P11 order of detention and Exhibit-P13 confirmation order of the Government are, therefore, upheld. Consequently, this writ petition is dismissed. The records produced in the sealed cover shall be returned to the learned Senior Public Prosecutor forthwith.

**Sd/-
SOUMEN SEN,
CHIEF JUSTICE**

**Sd/-
SYAM KUMAR V. M.,
JUDGE**

krj



2026:KER:62040

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APPENDIX OF WP (CRL.) NO. 818 OF 2026

PETITIONER EXHIBITS

Exhibit P1	TRUE COPY OF THE PROPOSAL NO.EDO TVM/2077/2025-T9 DATED 29.11.2025 OF THE 6TH RESPONDENT ADDRESSED TO THE 2ND RESPONDENT
Exhibit P2	TRUE COPY OF THE PROPOSAL FOR DETENTION ENCLOSED ALONG WITH EXT.P1
Exhibit P3	TRUE COPY OF THE PROPOSAL NO.EXC/SSZ/562/2022/SZ7 DATED 10.12.2025 OF THE 4TH RESPONDENT TO THE 2ND RESPONDENT
Exhibit P4	TRUE COPY OF THE LETTER NO.EXCENF/754/2025-XJ5 DATED 15.12.2025 OF THE 5TH RESPONDENT TO THE 2ND RESPONDENT
Exhibit P5	TRUE COPY OF THE LETTER NO.EXC/6644/2025-XC4 DATED 18.12.2025 OF THE 3RD RESPONDENT ADDRESSED TO THE 2ND RESPONDENT
Exhibit P6	TRUE COPY OF THE LETTER NO.EDOTVM/2077/2025-T9 DATED 20.12.2025 OF THE 6TH RESPONDENT ADDRESSED TO THE 2ND RESPONDENT
Exhibit P7	TRUE COPY OF THE REPORT OF THE MEETING OF THE SCREENING COMMITTEE HELD ON 24.12.2025
Exhibit P8	TRUE COPY OF THE ORDER DATED 03.01.2026 OF THE ADDITIONAL SESSIONS JUDGE-I, THIRUVANANTHAPURAM IN B.A.15/2026.
Exhibit P8(a)	TRUE COPY OF THE ORDER DATED 27.05.2025 IN CRL.M.P.NO.1053/2025 OF THE ADDITIONAL SESSIONS JUDGE-I, THIRUVANANTHAPURAM
Exhibit P9	TRUE COPY OF THE LETTER NO.EDOTVM/2077/2025-T9 DATED 27.12.2025 OF THE 6TH RESPONDENT TO THE 2ND RESPONDENT
Exhibit P10	TRUE COPY OF THE REPORT NO.EDOTVM/2077/2025-T9 DATED 06.01.2026 ALONG WITH THE CHECK LIST, SUBMITTED BY THE 6TH RESPONDENT TO THE 2ND RESPONDENT
Exhibit P11	TRUE COPY OF THE ORDER NO.HOME-SSC3/220/2025- HOME DATED 09.01.2026 OF THE 2ND RESPONDENT
Exhibit P12	TRUE COPY OF THE REPRESENTATION DATED 03.02.2026 SUBMITTED BY THE PETITIONER, BEFORE THE CHAIRMAN, PITNDPS ADVISORY BOARD
Exhibit P13	TRUE COPY OF THE G.O(RT)NO.759/2026/HOME DATED 27.02.2026
Exhibit P14	TRUE COPY OF THE JUDGMENT DATED 05.03.2025 OF THE HON'BLE SUPREME COURT IN CRL.APPEAL NO.4872-4873 OF 2024